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Case Number: 26AVCV00312 Hearing Date: August 25, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

KYLA CASTILLO, individually and on behalf of all other Aggrieved Employees,

Plaintiff,

v.

TORRID LLC, a California Limited Liability Company; and DOES 1 through 50, inclusive,

Defendants.

Case Number 26AVCV00312

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 25, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a California Private Attorneys General Act (PAGA) action arising from Defendant Torrid LLC's alleged violation of multiple sections of the California Labor Code. Defendant presently moves the Court to stay the proceedings.

On May 6, 2026, Representative Plaintiff Kyla Castillo (Plaintiff), individually and on behalf of all other Aggrieved Employees, filed a PAGA complaint against Defendant Torrid LLC (Defendant) asserting one cause of action for violation of Labor Code section 2698, et seq. Specifically, Plaintiff asserts that she was employed by Defendant on July 13, 2025 as a Key Holder until December 1, 2025. (Compl., ¶ 1.) Plaintiff filed a PAGA Notice on December 29, 2025 and served Notice to all named Defendants and to the LWDA. (Compl., ¶ 15.) Plaintiff brought this PAGA action on behalf of herself and all other Aggrieved Employees, defined as Defendant's current and former hourly-paid, non-exempt employees, who either were or are employed in the State of California from December 29, 2024 through the date of judgment in this action. (Compl., ¶¶ 6, 13.)

On March 19, 2026, Plaintiff filed a Peremptory Challenge to Judicial Officer pursuant to Civil Code section 170.6, and the action was reassigned to Judge William H. Forman in Department A14.

On April 27, 2026, Defendant filed its answer.

On May 6, 2026, Defendant filed a Notice of Related Case for Case Number 26CU011159C, Walker v. Torrid LLC in the San Diego County Superior Court, Department C-66 and the present Motion to Stay Proceedings.

On August 12, 2026, Plaintiff filed her opposition.

On August 18, 2026, Defendant filed its reply.

II. Legal Standard

Standard for Motion to Stay Proceedings – "Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) The trial court has the authority to control litigation before it in order to ensure the orderly administration of justice. (See Cal. Code Civ. Proc. §§ 128, 187; Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 967 ["It is also well established that courts have fundamental inherent equity, supervisory, and administrative powers, as well as inherent power to control litigation before them."].)

III. Discussion

Application – Defendant moves to stay this PAGA action pending the resolution of the earlier-filed Lakeshia Walker v. Torrid, LLC, San Diego Superior Court Case No. 26CU011159C action pursuant to California Code of Civil Procedure section 597, the rule of exclusive concurrent jurisdiction, and the Court's inherent authority to stay later-filed duplicative actions to promote judicial economy and avoid duplicative or inconsistent rulings and conflicts. (Notice of Motion, p. 2:10-13.)

The present case is a PAGA action brought by Plaintiff on behalf of Defendant's current and former hourly-paid, non-exempt employees, who either were or are employed in the State of California from December 29, 2024 through the date of judgment in this action. The action is based on Defendant's:

1. failure to provide employment records in violation of Labor Code sections 226, 432, and 1198.5

2. failure to pay overtime and double time in violation of Labor Code sections 510 and the applicable Wage Orders

3. failure to provide rest and meal periods in violation of Labor Code sections 226.7, 512(a), and the applicable Wage Orders;

4. failure to pay minimum wage in violation of Labor Code sections 1182.2, 1194, 1197, 1197.1, and the applicable Wage Orders

5. failure to keep accurate payroll records and provide itemized wage statements in violation of Labor Code sections 226(a), 1174(d), 1198, and the applicable Wage Orders

6. failure to pay reporting time wages in violation of applicable Wage Orders

7. failure to pay split shift wages in violation of applicable Wage Orders

8. failure to pay all wages earned on time in violation of Labor Code section 204

9. failure to pay all wages earned upon discharge or resignation in violation of Labor Code sections 201, 202, and 203

10. failure to reimburse necessary, business-related expenses in violation of Labor Code sections 2800 and 2802

11. failure to provide notice of paid sick time and accrual in violation of Labor Code section 246

12. violation of causing to be violated a section of the Labor Code or any Wage Order in violation of Labor Code section 558(a).

(Compl., ¶¶ 6, 13.)

The previously-filed action on which Defendant's present motion is based, filed on February 27, 2026 as Lakeshia Walker v. Torrid, LLC (SD County Case No. 26CU011159C) is a PAGA and class action suit brought by representative Plaintiff Lakeshia Walker (Walker) on behalf of all individuals who (1) are or were employed by Defendants or their predecessor or merged entities in California as hourly, non-exempt store managers and assistant store managers who worked shifts in excess of five hours during the Class Period, (2) all individuals who are or were employed by Defendants or their predecessor or merged entities in California as hourly, non-exempt store managers and assistant store managers, who worked shifts in excess of three and a half hours during the Class Period, (3) all individuals who are or were employed by Defendants, or their predecessor or merged entities in California as hourly, non-exempt store managers and assistant store managers during the Class Period, (4) all individuals who are or where employed by Defendants or their predecessor or merged entities in California as hourly, non-exempt store managers and assistant store managers, and who were paid more than seven days after the close of payroll during the Class Period, and (5) all individuals who are or were employed by Defendants or their predecessor or merged entities in California as hourly, non-exempt store managers' and assistant store managers, who were not paid their wages at the time of termination or within seventy-two (72) hours of their resignation and have not been paid those sums for thirty (30) days thereafter, during the Class Period. (Rocha Decl., Ex. B, ¶ 7.)

The Class Period for Walker is from February 27, 2022, four years prior to the filing of the complaint, through the trial date. (Rocha Decl., Ex B, ¶ 2.) The PAGA claim in Walker is asserted as the seventh cause of action and was brought for Defendant's:

1. Violation of Labor Code section 201

2. Violation of Labor Code section 202

3. Violation of Labor Code section 203

4. Violation of Labor Code section 204

5. Violation of Labor Code section 210

6. Violation of Labor Code section 226

7. Violation of Labor Code section 226.7

8. Violation of Labor Code section 512

9. Violation of Labor Code section 1197

10. Violation of Labor Code section 1198

11. Violation of the Wage Order

(Rocha Decl., Ex. B, ¶ 84.)

Defendant argues that Plaintiff's complaint is a copycat of Walker's, and that the claims alleged in the present lawsuit are a subset and duplicative of the claims made in Walker's class and PAGA action. (Motion, p. 2:3-6.) As such, Defendant requests a stay on this action in its entirety pending the resolution of the Walker action. (Motion, p. 2:17-18.) Defense counsel attempted to reach an agreement with Plaintiff's counsel regarding the imposition of a stay in the present proceedings, but no agreement was reached. (Crosman Decl., ¶ 4, Ex. B.)

In opposition, Plaintiff argues the motion should be denied as Walker's class and PAGA claims are expressly limited to hourly store managers and assistant managers and to a narrower set of claims for Labor Code violations, whereas the present case is a PAGA-only representative action prosecuted on behalf of all of Torrid's non-exempt, hourly employees in California and includes numerous Labor Code violations that Walker does not. (Opp., p. 2:9-13.) Therefore, Plaintiff argues that because the San Diego court cannot adjudicate the claims of the broader group of aggrieved employees represented in the present action or grant relief on the additional Labor Code violations, Defendant is not entitled to a stay in the proceedings. (Opp., p. 2:13-17.)

The Court notes that the Declaration of Christopher A Crosman purports to attach as Exhibit A a copy of the complaint filed in the Walker action, but it appears counsel inadvertently included a copy of Defendant's answer to the Walker complaint. A copy of the Walker complaint has been attached as Exhibit B to the Declaration of Plaintiff's counsel Joseph C. Rocha, and the Court will therefore reference this Exhibit B when referring to the Walker complaint herein.

a. PAGA Does Not Prohibit Overlapping PAGA Cases

As a preliminary matter, the Court notes that PAGA expressly provides that employees retain all rights “to pursue or recover other remedies available under state or federal law, either separately or concurrently with an action taken under this part.”¿(Cal. Lab. Code, § 2699, subd. (k)(1).)¿ Further, existing case law establishes that overlapping PAGA cases brought by different PAGA representatives are not prohibited.¿(See Julian v. Glenair, Inc. (2017) 17 Cal.App.5th 853, 873 [“PAGA does not foreclose separate but similar actions by different employees against the same employer.”].)

However, “[b]ecause an employee's PAGA action ‘functions as a substitute for an action brought by the government itself,’ under the doctrine of collateral estoppel, a judgment unfavorable to the employee binds the government, as well as all aggrieved nonparty employees potentially entitled to assert a PAGA action.” (Julian, supra, 17 Cal.App.5th at 867, citing Arias v. Superior Court (2009) 46 Cal.4th 969, 986.)

Nevertheless, this Court is not prevented from staying or abating a case pending the completion of another, regardless of whether they are overlapping PAGA claims brought by different representatives.¿(See, e.g., Alakozai v. Chase Inv. Servs. Corp. (C.D. Cal.) 2012 WL 748584, LEXIS 30759, *16 [“allowing the two matters to proceed simultaneously would unnecessarily risk inconsistent judgments and defeat efficiency”].)¿¿

b. Code of Civil Procedure Section 597 Abatement

Defendant argues that the Court has the authority to stay the present PAGA action under Code of Civil Procedure section 597 as both Walker and the present action involves the same parties and the same claims, and such duplicative actions give rise to the authority to stay under Section 597. (Motion, p. 3:25-28, 4:7-13.)

In opposition, Plaintiff argues that the mandatory interlocutory stay under Section 597 is only triggered when the previously-filed action involves the same cause of action between the same parties, not when there are mere similarities, and courts instead look to exclusive concurrent jurisdiction. (Opp., p. 5:15-19.) Thus, Plaintiff argues that Section 597 does not authorize the Court to stay the present action, because it does not encompass the same aggrieved employees, operative claims, or relief sought as in Walker. (Opp., p. 10:5-8.)

Defendant’s reply is silent on the applicability of Section 597.

Code of Civil Procedure section 597 provides, in part:

When the answer pleads ... that another action is pending upon the same cause of action, or sets up any other defense not involving the merits of the plaintiff's cause of action but constituting a bar or ground of abatement to the prosecution thereof, the court may, either upon its own motion or upon the motion of any party, proceed to the trial of the special defense or defenses before the trial of any other issue in the case, and if the decision of the court, or the verdict of the jury, upon any special defense so tried (other than the defense of another action pending) is in favor of the defendant pleading the same, judgment for the defendant shall thereupon be entered and no trial of other issues in the action shall be had unless that judgment shall be reversed on appeal or otherwise set aside or vacated; and where the defense of another action pending or a demurrer based upon subdivision (c) of Section 430.10 is sustained (and no other special defense is sustained) an interlocutory judgment shall be entered in favor of the defendant pleading the same to the effect that no trial of other issues shall be had until the final determination of that other action.

(Code Civ. Proc. § 597 (emphasis added).)

“A plea in abatement is essentially a request— not that an action be terminated—but that it be continued until such time as there has been a disposition of the first action.” (Lawyers Title Ins. Corp. v. Superior Court (1984) 151 Cal.App.3d 455, 459.)

A plea in abatement under Code of Civil Procedure section 430.10, subdivision (c) is recognized to prevent “a multiplicity of suits and unnecessary vexatious litigation.” (Hamm v. San Joaquin & Kings River Canal Co. (1941) 44 Cal.App.2d 47, 56; Code Civ. Proc., § 430.10, subd. (c) [party against whom a complaint is filed may object by answer to the pleading on the ground that there is another action pending between the same parties on the same cause of action].) The reason for this rule is “that if the first lawsuit affords ample remedy to the allegedly aggrieved party, it would be not only unnecessary but vexatious to permit the prosecution of the second lawsuit founded upon the same cause of action.” (Fresno Planning Mill Co v. Manning (1912) 20 Cal.App. 766, 769.) Where the cause of abatement is the pendency of another lawsuit on the same cause of action, the statute prescribing entry of an interlocutory judgment suspending proceedings until the final determination of the other action permits the trial court to retain jurisdiction over the subsequent action. (County of Santa Clara v. Escobar¿(2016) 244 Cal.App.4th 555, 565.)

The California Supreme Court has long noted that the plea in abatement defense is a disfavored defense and is therefore strictly construed against the defendant, such that the defendant must establish by technical exactness that the defense applies. (See, e.g., Lord v. Garland (1946) 27 Cal.2d 840, 848-49 ["The plea is dilatory in its nature and is not favored."].) For a second action to be abated because of pendency of prior action, the issues in the two actions must be substantially the same. (Id at 848.) The test applied is “whether final judgment in first action could be pleaded in bar as former adjudication.” (Trickey v. Long Beach (1951), 101 Cal.App. 2d 871, 881.)

The defendant must show that “the parties, cause of action, and issues are identical, and the same evidence would support the judgment in each case.” (California Union Ins. Co. v. Trinity River Land Co. (1980) 105 Cal.App.3d 104, 108.) Here, Defendant has not, and cannot, make the requisite showing.

First, the Court finds that the parties in Walker and in the present case are not identical. In both this case and in Walker, Defendant is the named defendant, and so for that there is an exact match. However, the plaintiffs in this case and Walker, while similar, are different. It is well established that in PAGA actions, the State is always the real party in interest, while class actions resolve the claim of the representative plaintiff and the claims of all class members, not the claims of the State. (See Turrieta v. Lyft, Inc. (2024) 16 Cal.5th 664, 692, n. 12.) When an employee plaintiff is suing under PAGA, he or she does so as the proxy or agent of the state's labor law enforcement agencies. (Arias v. Superior Court (2009) 46 Cal.4th 969, 986.) With respect to a "representative action brought by an aggrieved employee under the Labor Code Private Attorneys General Act of 2004 ... the judgment in such an action is binding not only on the named employee plaintiff but also on government agencies and any aggrieved employee not a party to the proceeding." (Arias, supra, 46 Cal.4th at 985-86.) Similarly, a PAGA claim "is not a dispute between an employer and an employee arising out of their contractual relationship, it is a dispute between an employer and the state, which alleges directly or through its agents - either the Labor and Workforce Development Agency or aggrieved employees — that the employer has violated the Labor Code." (Iskanian v. CIS Transportation Los Angeles (2014) 59 Cal.4th 348, 386-87; see also Kim v. Reins International California, Inc. (2020) 9 Cal.5th 73, 81.)

The present case only asserts a PAGA cause of action, meaning the real party in interest is the State. Essentially, this case is the State of California vs. Defendant. However, in Walker, the State is only a party in interest to the seventh cause of action, and the remainder of the complaint is brought by Walker on behalf of herself and all non-present class members, who are the parties in interest. Furthermore, while in both cases the representative plaintiffs are asserting their PAGA claims on behalf of the State of California, the group of aggrieved employees each seeks to represent is also different. Walker is limited to hourly managers and assistant managers from February 27, 2022 to the date of trial, while the present case encompasses all hourly employees from December 29, 2024 to the date of judgment. Therefore, there is no exactness between the parties to both actions.

Second, the causes of action and issues in Walker and the present case are not identical and are based on slightly different allegations. Both cases generally raise similar, and at times, overlapping issues. For example, both cases allege failure to provide employment records, provide rest breaks and meal periods, pay all wages earned, pay wages earned on termination, and assert violations of the Wage Order and violations under Labor Code sections 201, 202, 203, 204, 226, 226.7, 512, 1197, 1198 in their respective PAGA causes of action. (Compl., ¶ 6; Rocha Decl., Ex. B, ¶¶ 7, 19, 22-26, 30-32, 36, 61, 70-71, 78, 94.) However, the crux of the Walker action is Defendant's alleged failure to provide rest breaks and meal periods as required, and all violations appear from the Walker complaint stem from this failure. Walker also asserts violations of Labor Code sections 210, retaliatory termination under Labor Code section 1102.5 (Rocha Decl., ¶ 42), and violation of Business and Professions Code section 17200, et seq., whereas the present action does not. The present action is also broader, and the alleged violations include additional claims of failure to pay overtime and double time, pay reporting time, pay minimum wages, pay split-shift wages, pay wages and provide accurate payroll statements for off-the-clock work, maintain accurate payroll records and itemized wage statements, reimburse business related expenses, and provide notice of sick time and accrual in violation of Labor Code sections 432, 1198.5, 510, 1182.2, 1194, 1197.1, 1174, 2800, 2802, 246, and 558, none of which are alleged in the Walker action, let alone the one PAGA claim asserted therein, and many of which are based on violations not stemming solely from Defendant's alleged failure to provide rest breaks and meal periods.

Finally, the same evidence that would support the judgment in Walker would not support the judgment in the present case, due to the differences in the issues raised and causes of action and violations asserted, as discussed ante.

Therefore, Walker and the present case are not exactly identical as required, and the Court cannot stay the present action pursuant to Code of Civil Procedure section 597.

c. Exclusive Concurrent Jurisdiction

Defendant next argues that the Court should stay the action under the rule of exclusive concurrent jurisdiction. Defendant asserts that both actions involve overlapping parties, and that the plaintiffs in this action and the Walker action, at least in regard to the PAGA causes of action, are identical, as the State of California and Defendant are the real parties in interest in both cases, and that the time period for which Plaintiff brings the present case is encompassed in the time period for which Walker brings her PAGA action. (Motion, p. 6:20-25, 7:5-9; see Williams v. Superior Court (2017) 3 Cal.5th 531, 547, n. 4 [whatever personal claims the aggrieved employees have for relief are not at stake in a PAGA action].) Defendant further argues that the Walker action overlaps with the PAGA claims at issue here, noting the overlap in the claims asserted for failure to provide paid rest breaks and pay missed rest break premiums, provide meal periods and pay missed meal period premiums, failure to pay all wages owed in a timely manner, failure to provide complete wage statements, and waiting time penalties, brought both by Walker and Plaintiff. (Motion, p. 6:27-7:4.) Defendant finally argues that both cases seek identical relief in the form of PAGA civil penalties. (Motion, p. 7:11-14.)

In opposition, while Plaintiff concedes that the State is the real party in interest in both cases, Plaintiff argues that the exclusive concurrent jurisdiction rule does not apply here, because (1) Plaintiff is not within Walker's manager-only PAGA group, and the groups are different in kind, (2) the rule requires that the first court has the ability to grant all the relief under the pleadings, and the Walker pleadings do not encompass the full scope of this action, (3) Plaintiff's case only seeks civil penalties under PAGA, while the Walker seeks both PAGA penalties and the main relief of wages under the class action causes of action, and thus the actions seek wholly different remedies and fundamentally different remedies for different groups of employees, and (4) the discovery at issue in these cases is different because merits based discovery is generally precluded prior to a successful motion for class certification, and staying the current PAGA action could delay resolution for years pending class certification in the Walker action. (Opp., p. 7:3-9, 7:12-19, 7:21-25, 8:15:22.)

On reply, Defendant reiterates that the rule applies here, as both this case and Walker assert representative PAGA claims against Defendant, seek PAGA civil penalties, concern overlapping time periods, allege many of the same underlying wage and hour violations to an overlapping group of hourly workers, are prosecuted on behalf of the same real party in interest, the State, and seek penalties against the same employer based on overlapping practices. (Reply, p. 3:5-10.) Defendant also argues that all claims for unpaid wages arise out of the same primary right and are therefore considered to be the same cause of action, despite Plaintiff and Walker asserting different theories of recovery. (Reply, p. 4:5-13; citing Shine v. Williams-Sonoma, Inc. (2018) 23 Cal. App. 5th 1070 [the right to be paid all wages due is a single primary right and gives rise to a single cause of action, even though different theories of recovery may be pleaded]; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal. 4th 888, 904 ["Even where there are multiple legal theories upon which recovery might be predicated, one injury gives rise to only one claim for relief."].) Defendant further argues that the Walker group is encompassed within the broader group alleged here, resulting in a substantial overlap in the groups of aggrieved employees at issue. (Reply, p. 4:14-17.)

“Under the rule of exclusive concurrent jurisdiction, ‘when two superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation, the first to assume jurisdiction has exclusive and continuing jurisdiction over the subject matter and all parties involved until such time as all necessarily related matters have been resolved.’” (Plant Insulation Co. v. Fibreboard Corp.¿(1990) 224 Cal.App.3d 781, 786–787, citing California Union Ins. Co. v. Trinity River Land Co. (1980) 105 Cal.App.3d 104, 109.) “The rule is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy, and preventing vexatious litigation and multiplicity of suits.” (Plant Insulation Co., supra, 224 Cal.App.3d at 787.) "The rule is established and enforced not 'so much to protect the rights of parties as to protect the rights of Courts of co-ordinate jurisdiction to avoid conflict of jurisdiction, confusion and delay in the administration of justice.'" (Ibid.)

“Although the rule of exclusive concurrent jurisdiction is similar in effect to the statutory plea in abatement, it has been interpreted and applied more expansively, and therefore may apply where the narrow grounds required for a statutory plea of abatement do not exist. (Id. at 788.) “Unlike the statutory plea of abatement, the rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions.” (Id. at 788.)

“An order of abatement issues as a matter of right not as a matter of discretion where the conditions for its issuance exist.” (Id. at p. 787; see also People ex rel. Garamendi v. Am. Autoplan, Inc. (1993) 20 Cal.App.4th 760, 772, citing Leadford v. Leadford (1992) 6 Cal.App.4th 571, 574 [the “trial court has no discretion to allow the second action to proceed if it finds the first involves substantially the same controversy between the same parties"].) "However, abatement is not appropriate where the first action cannot afford the relief sought in the second." (Plant Insulation Co., supra, 224 Cal.App.3d at 787.)

In Shaw v. Superior Court of Contra Costa County¿(2022) 78 Cal.App.5th 245, 260, the Appellate Court found that a court has the “power to stay a subsequent PAGA representative suit that is wholly subsumed by a prior PAGA representative suit—i.e., where the second suit alleges the same Labor Code violations based on the same facts and theories as the prior suit.” Courts have adopted an “expansive subject matter test…which considers whether the first and second actions arise from the ‘same transaction.’” (Plant Insulation Co., supra, 224 Cal.App.3d at 788; see also County of Siskiyou v. Superior Court (2013) 217 Cal.App.4th 83, 89 [“it is sufficient for the exercise of equitable jurisdiction that the issue in both actions is the same and arises out of the same transaction or events."].)

Based on the foregoing, the Court finds that the exclusive concurrent jurisdiction rule does not apply to this case and the Walker action.

As a preliminary matter, the Court agrees with Defendant that Plaintiff’s attempt to distinguish this case and Walker on the grounds that Walker asserts class action claims along with its PAGA cause of action is unpersuasive. Both actions assert a cause of action for civil penalties under PAGA on the grounds of Defendant’s alleged Labor Code violations, and it is not determinative that certain procedural steps must be taken for Walker’s class action claims, as they are not applicable to, and have no bearing on, the ultimate applicability of the exclusive concurrent jurisdiction rule.

It is true that the alleged Labor Code violations in this action overlap with the alleged violations in the Walker action. Both PAGA causes of action seek penalties based on allegations that Defendant failed to pay final wages at termination, failed to timely pay wages, failed to provide meal periods or rest periods or pay a premium in lieu thereof, and failed to provide accurate wage statements. The Walker action also covers a more extended time period, and many of the aggrieved employees covered by the present action will necessarily fall within the group of employees the Walker action represents, including any and all managerial employees included in Plaintiff’s present PAGA action, which does not exclude this class of employees.

However, the exclusive concurrent jurisdiction rule does not encompass subsequent actions which are not wholly subsumed by the first action filed. (Shaw, supra, 78 Cal.App.5th at 260.) Here, there is no question that Plaintiff’s subsequently filed action overlaps with, but is not wholly subsumed by, the Walker action. Walker concerns more limited allegations and a narrower scope of Labor Code violations arising from missed rest breaks and meal periods, whereas the current complaint is more expansive in its allegations, including for failure to pay minimum wage, reimburse necessary business expenses, pay overtime and double-time, and provide notice of sick leave. None of these allegations of Labor Code violations are asserted in Walker. Furthermore, all non-managerial hourly and non-exempt California employees are necessarily excluded from the Walker action. Therefore, the San Diego Superior Court does not have the authority to adjudicate these issues and bind these employees or the State to any judgment or ruling on the issues raised in the present action.

Defendant's "primary right" argument does not change this analysis. Even if one accepts that there is a single "primary right" in the right to be paid all wages due (such as overtime, minimum-wage, reporting-time, and others) for purposes of claim preclusion analysis (Shine v. Williams-Sonoma, Inc. (2018) 23 Cal.App.5th 1070; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904), the present action still would not be wholly subsumed by Walker. Some of the alleged violations here are not wage claims, such as the failure to provide employment records (Lab. Code, §§ 226, 432, 1198.5, to provide notice of paid sick time (Lab. Code, § 246), and to reimburse business expenses (Lab. Code, §§ 2800, 2802). These claims are not asserted in Walker. Perhaps more importantly, , the primary-right doctrine does not enable the Walker court power to grant relief to employees not encompassed by that lawsuit. Walker is prosecuted on behalf of managerial employees only. The allegations of this lawsuit extend to non-managerial employees. Therefore abatement of this lawsuit in its entirety is not appropriate. (Plant Insulation Co., supra, 224 Cal.App.3d at p. 787.)

This conclusion, however, does not foreclose the Court from fashioning a narrower, discretionary stay of the overlapping claims under the Court's inherent authority, as addressed below.

d. Court's Inherent Authority to Stay Proceedings to Promote Judicial Economy and Avoid Duplicative or Inconsistent Rulings

Finaly, the Court finds that under its inherent powers, a limited stay of the claims that overlap with the Walker action is warranted, but a stay of this action in its entirety is not.

Included in the Court's inherent authority to control proceedings before it is the power to stay PAGA Actions pursuant to Code of Civil Procedure section 187. (Code Civ. Proc. § 187; see Bailey v. Fosca Oil Co. (1963) 216 Cal.App.2d 813, 817 ["the power of a court to stay proceedings. . . was inherent at common law and is now vested in the superior courts"].) "Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) The case management tools available to trial courts, including the inherent authority to stay an action when appropriate and the ability to issue protective orders when necessary, can overcome problems of simultaneous litigation if they do occur. (Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison (1998) 18 Cal.4th 739, 758.)

Here, the present case will necessarily cause some level of prejudice to either Plaintiff or Defendant in the event of an adverse ruling. However, the prejudice to Plaintiff under these circumstances outweighs that imposed on Defendant. Plaintiff, a former Key Holder with Defendant, is not covered by Walker for any of the causes of action asserted, including the PAGA action. Plaintiff also asserts numerous allegations and Labor Code violations which will be left wholly unremedied by Walker on adjudication, and all non-managerial employees will be left without remedy until the conclusion of the Walker action, which as Plaintiff notes, may take years given that it is simultaneously asserting class action causes of action, a PAGA action, an unfair competition claim, and an individual retaliatory termination cause of action. To stay the present action in its entirety and leave these violations completely untouched is antithetical to the purpose of PAGA and the interest in prompt resolution of claims.

While the Court acknowledges that permitting both PAGA actions to proceed simultaneously poses the risk of subjecting Defendant to duplicative litigation, motion practice, increased expense, and duplicative discovery, Labor Code section 2699 provides that trial courts maintain authority to limit the evidence presented at trial, limit the scope of any claim filed pursuant to PAGA to ensure the claim can be effectively tried, and consolidate or coordinate PAGA actions which allege legally or factually overlapping violations against the same employer. (Lab. Code, § 2699, subd. (p)-(q).) Thus, both this Court and the San Diego Superior Court have the power to manage the two PAGA actions to the extent possible to mitigate prejudice to Defendant and avoid inconsistent rulings. No such safeguards are available to mitigate prejudice to Plaintiff on an order staying the entire case pending resolution of the Walker action, which will require the San Diego Court to adjudicate not only the PAGA action, but also multiple class action causes of action requiring class certification and causes of action individually asserted by Walker.

Nevertheless, the Court finds that it should stay the overlapping claims. This case and Walker both encompass hourly, non-exempt store managers and assistant store managers, and their claims for alleged Labor Code violations of the failure to provide meal and rest periods, the failure to timely pay wages, the failure to pay all wages due at separation, and the failure to provide accurate wage statements. This Court will not permit those overlapping claims to proceed in two courts at once for all of the reasons articulated by moving party.

A special concern is raised by Turrieta v. Lyft, Inc. (2024) 16 Cal.5th 664. There, the California Supreme Court held that a PAGA plaintiff has no right to intervene in, or object to, or even move to vacate a judgment in an overlapping PAGA action brought by another plaintiff on behalf of the State. (Id., at 676-677 ("Although a PAGA plaintiff may use the ordinary tools of civil litigation that are consistent with the statutory authorization to commence an action, such as taking discovery, filing motions, and attending trial, we conclude for reasons explained below that the authority Olson seeks in this case—to intervene in the ongoing PAGA action of another plaintiff asserting overlapping claims, to require a court to consider objections to a proposed settlement in that overlapping action, and to move to vacate the judgment in that action—would be inconsistent with the scheme the Legislature enacted.").) Permitting the Plaintiff here to litigate the Walker claims on behalf of the State would constitute in effect an end-run of Turrieta, by letting this Plaintiff contest the result in an overlapping PAGA action by means of a separate lawsuit. A stay confined to the overlapping claims and to the overlapping group of managerial employees avoids that risk, while leaving the parties free to litigate the non-overlapping claims. The Court's authority to coordinate or limit overlapping PAGA claims under is permitted by Labor Code section 2699, subdivisions (p) and (q).

Accordingly, Defendant's motion is GRANTED IN PART and DENIED IN PART, as set forth in the Conclusion below.

IV. Conclusion

Defendant Torrid LLC's Motion to Stay Proceedings is GRANTED IN PART and DENIED IN PART. The motion is GRANTED as to Plaintiff's claims for PAGA civil penalties, on behalf of hourly, non-exempt store managers and assistant store managers, for the Labor Code violations also alleged in the Walker action—the failure to provide meal and rest periods (Lab. Code, §§ 226.7, 512), the failure to timely pay wages during employment (Lab. Code, § 204), the failure to pay all wages due upon discharge or resignation (Lab. Code, §§ 201, 202, 203), and the failure to provide accurate itemized wage statements (Lab. Code, § 226)—and those claims are STAYED pending resolution of the Walker action. The motion is DENIED in all other respects; Plaintiff's remaining claims, and the claims of all aggrieved employees other than store managers and assistant store managers, may proceed.